



DEPARTMENT CIRCULAR NO. **HRA-007**
Series of 2025

NOV 04 2025

**SUBJECT : GUIDELINES ON THE DISPOSAL OF GOVERNMENT
INFORMATION AND COMMUNICATIONS TECHNOLOGY (ICT)
PROPERTIES**

WHEREAS, Republic Act (RA) No. 10844 or the Department of Information and Communications Technology (DICT) Act of 2015 declares that it is the policy of the State to ensure (1) universal access to quality, affordable, reliable, and secure Information and Communications Technology (ICT) services; (2) the rights of individuals to privacy and confidentiality of their personal information; and (3) the security of critical ICT infrastructures including information assets of the government, individuals and businesses;

WHEREAS, Section 2 of Presidential Decree (PD) No. 1445, otherwise known as the Government Auditing Code of the Philippines, provides that it is the policy of the State that all resources of the government shall be managed, expended, or utilized in accordance with law and regulations, and safeguarded against loss or wastage through illegal or improper disposition, with a view to ensuring efficiency, economy, and effectiveness in the operations of government;

WHEREAS, RA No. 9003 or the "Ecological Solid Waste Management Act of 2000", as amended, mandates a comprehensive and systematic ecological solid waste management program encompassing E-waste. The law also provides that government agencies must ensure that electronic waste is not disposed of in general waste streams and that the same must implement separate collection and disposal methods;

WHEREAS, RA No. 6969 or "Toxic Substances and Hazardous and Nuclear Wastes Control Act of 1990" provides guidelines on the importation, manufacturing, processing, handling, storage, transportation, sale, distribution, use, and disposal of all unregulated chemical substances and mixtures in the Philippines, including the entry or transit, the keeping or storage and disposal of hazardous and nuclear wastes into the country for whatever purpose, as well as the regulation of waste electric and electronic equipment (e-waste);

WHEREAS, Department of Environment and Natural Resources (DENR) Administrative Order (DENR AO) No. 2013-22 or the Revised Procedures and Standards for the Management of Hazardous Wastes prescribes guidelines on the proper disposal of waste electrical and electronic equipment (WEEE), a category under which ICT property and equipment are currently classified;

WHEREAS, Section VII of the National Archives of the Philippines Memorandum Circular No. 210401 or the Electronic Records Management Policy, prescribes the process for the disposition of electronic records;

WHEREAS, the Commission on Audit and Department of Budget Management (COA-DBM) Joint Circular (JC) No. 2024-1 or the Revised Manual on the Disposal of Government Properties directs the DICT to issue specific guidelines on the disposal of ICT properties;

WHEREAS, Section 2, item 3 of the "Revised Manual on the Disposal of Government Properties" provides that the heads of agencies/offices have the authority and responsibility to ensure the judicious management of government properties and undertake the systematic disposal of properties/supplies/materials that are already unserviceable, obsolete, or no longer needed by the agency;

WHEREAS, the implementation of streamlined and time-sensitive disposal processes is crucial to ensure the optimal management of government properties, to minimize financial losses, to reduce the ongoing cost of storage, to alleviate the burden on accountable employees currently managing excess inventory, and to minimize environmental impact by diverting hazardous materials from landfills and promoting resource recovery through reuse or recycling;

WHEREAS, proactive inventory management optimizes storage space, ensuring essential equipment and supplies are readily available in order to enhance operational efficiency and foster a more streamlined work environment;

NOW, THEREFORE, in the exigency of public service and pursuant to the provisions of existing laws, rules, and regulations, this Circular is hereby issued, adopted, and promulgated.

Section 1. Purpose.—The DICT issues this circular to establish the guidelines for the disposal of government-owned ICT properties that are unserviceable, have reached their estimated useful life, can no longer provide the expected service or output due to obsolescence, or are no longer needed.¹

Section 2. Scope.—This Circular shall cover government-owned ICT properties and equipment, including, but not limited to, computers, laptops, servers, peripherals, networking devices, software licenses, data storage devices, mobile devices, handphones and tablets, and hardware parts, that were marked for disposal by the Disposal Committee of the Government Office concerned.

The guidelines prescribed herein shall apply to all departments and agencies under the Executive Branch, including their regional offices, field offices, attached agencies, State Universities and Colleges (SUCs), Government-Owned and Controlled Corporations (GOCCs) and their subsidiaries, and Local Government Units (LGUs). The Legislature, Judiciary, Constitutional Commissions, and the Office of the Ombudsman are strongly encouraged to adopt the provisions of this Circular.

¹ See COA-DBM Joint Circ. No. 2024-01, Part I (A (2.0))

Section 3. Definition of Terms.— For the purpose of this Circular, the following terms shall mean and be understood as follows:

- A. **Data sanitization** refers to the process of irreversibly removing or destroying data stored on a memory device (including, but not limited to, hard drives, solid-state drives, flash memory, mobile devices, compact disks (CD), digital versatile disks (DVD)).²
- B. **Destruction/Condemnation** refers to the process of declaring a property unserviceable when it has no commercial value, or is beyond economic repair, or has no willing receiver, or the appraised value is less than the administrative cost of sale, subject to the prior inspection by the COA auditor.³
- C. **Disposal Committee** refers to the body created within an agency or office, pursuant to Executive Order No. 888, s. 1983,⁴ as amended, that shall lead to the expedited disposal of unserviceable, obsolete, junk, and/or excess Plant, Property and Equipment in accordance with existing laws, rules, and regulations. The updated constitution (organization, powers and functions, Secretariat and its functions and powers) of the Disposal Committee is provided under Part II(A) of COA-DBM Joint Circular No. 2024-1.⁵
- D. **End-user** refers to the accountable officer of the ICT property.
- E. **E-Waste** refers to Waste Electrical and Electronic Equipment (WEEE), including all components, subassemblies, and consumables that are part of the equipment at the time the equipment becomes waste.⁶ The equipment becomes waste when the equipment has reached the end of its useful life or is declared unserviceable based on the assessment of the ICT Unit.
- F. **Government Office** refers to departments and agencies under the Executive Branch, including their regional offices, field offices, attached agencies, State Universities and Colleges (SUCs), Government-Owned and Controlled Corporations (GOCCs) and their subsidiaries, Local Government Units (LGUs), and others covered by this Circular.
- G. **Hazardous E-waste** refers to all WEEE that contain hazardous components such as lead, cadmium, mercury, hexavalent chromium, polybrominated biphenyls (PBBs), and

² See International Telecommunication Union (ITU), Handbook for the development of a policy framework on ICT/e-waste, 2018, p. 46, available at <https://itu.int/en/ITU-D/Climate-Change/Documents/2018/Handbook-Policy-framework-on-ICT-Ewaste.pdf>.

³ See Department of Information and Communications Technology (DICT), Procedure on the Disposal of Unserviceable Property, DICT-AS-GSD-PR022.

⁴ See Executive Order No. 888, s. 1983, Authorizing Ministers and Heads of Ministries/Agencies to Dispose of their Respective Unserviceable Equipment and Disposable Property [EO No. 888, s. 1983] (18 March 1983).

⁵ COA-DBM Joint Circ. No. 2024-01, Part II (A).

⁶ See Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and their Disposal, available at <https://www.basel.int/Implementation/Ewaste/Overview/tabid/4063/Default.aspx>. The Philippines is among the 53 signatories to the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and their Disposal. The treaty was ratified by the Philippine Congress on 21 October 1993, and entered into force on 19 January 1994.

polybrominated diphenyl ethers (PBDEs) that includes its peripherals, i.e. ink cartridges, toners.⁷

H. **Information and Communications Technology or ICT** refers to the totality of electronic means to access, create, collect, store, process, receive, transmit, present, and disseminate information.⁸

I. **ICT Properties** may be classified into:

1. **ICT Infrastructure, Machineries, and Equipment** includes equipment and machinery for communication networks and data centers, and storage facilities.⁹
2. **ICT Office Equipment** includes office ICT equipment (e.g., desktop computers, mobile computing devices, tablets, printers, scanners), network devices (e.g., switches, routers, power supplies), and software.¹⁰
3. **ICT Office Supplies** particularly expendable and semi-expendable ICT supplies, accessories, and peripherals (e.g. monitor/terminal, hard disk, toner, webcam, headset, digital camera, video card, inkjet printer and other portable printers, ink cartridge, mini-projector, CD-ROM drive, DVD-ROM drive, flash drive, USB, external hard drive, IP phone, memory card, processor, dongle, mouse pad, keyboard, internal or external modems, scanner, speaker, external microphone, sound card, AVR, UPS, Bluetooth device, fax machine, wires and cables, CMOS battery, media card readers, video camera, portable plotters, touchscreen, digital pen, CPU casing, motherboard, portable projector screen, RAM).¹¹

J. **ICT Unit** refers to the organizational unit that manages, operates, maintains, and secures the management information systems and infrastructure internal to the Government Office.

K. **Materials Recovery, or resource recovery in the context of ICT**, refers to identifying, extracting, and repurposing usable components or materials from decommissioned ICT equipment.¹²

L. **Non-expendable properties** refer to properties that cannot be consumed, spent, or used up, whose life is more than one (1) year but whose value is more than Fifty Thousand Pesos (PhP 50,000.00).¹³

⁷ See Department of Environment and Natural Resources Department Order No. 2013-22 at p.14

⁸ An Act Creating the Department of Information and Communications Technology, Defining its Powers and Functions Appropriating Funds Therefor, and for Other Purposes, [Department of Information and Communications Technology Act of 2015], Republic Act No. 10844 § 3 (a) (2016).

⁹ DBM, Budget Call for FY 2015, National Budget Memorandum No. 120, series of 2014 [NBM No. 120, s. 2014], Part (B) (26.2) (6 January 2015).

¹⁰ *Id.* Part (B) (25.2).

¹¹ *Id.* Part (B) (7.15).

¹² An Act Providing for an Ecological Solid Waste Management Program, Creating the Necessary Institutional Mechanisms and Incentives, Declaring Certain Acts Prohibited and Providing Penalties, Appropriating Funds Therefor, and for Other Purposes [Ecological Solid Waste Management Act of 2000], Republic Act 9003 § 3 (rr) (2001).

¹³ See COA, Guidelines on the Implementation of Section 23 of the General Provisions Republic Act No. 11639 also known as the General Appropriations Act for Fiscal Year 2022 relative to the increase in the capitalization threshold from PhP 15,000.00 to 50,000.00, COA Circular No. 2022-004 [COA Circular No. 2022-004] (31 May 2022).

- M. **Obsolete government ICT Properties** refer to ICT properties that have lost their efficacy either due to technological advancement, change of procedures, reorganization of Government Offices, or completion of the project.¹⁴
- N. **Obsolete Software** refers to outdated software that is no longer used, even if it is still in working condition. It may become obsolete when replaced by newer or better software, a change in organizational policy or process, or the software has been withdrawn from use (whether commercial or limited use).¹⁵
- O. **Personal data** refers to all types of personal information and sensitive personal information.¹⁶
- P. **Personal information** refers to any information, whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual.¹⁷
- Q. **Property Unit** refers to the organizational unit handling asset management and is in charge of monitoring office resources, including ICT properties.
- R. **Semi-expendable properties** refer to tangible items below the capitalization threshold prescribed by COA guidelines.¹⁸
- S. **Sensitive personal information** refers to personal information:
1. About an individual's race, ethnic origin, marital status, age, color, and religious, philosophical, or political affiliations;
 2. About an individual's health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings;
 3. Issued by government agencies peculiar to an individual, which includes, but is not limited to, social security numbers, previous or current health records, licenses or their denials, suspensions or revocations, and tax returns; and
 4. Specifically established by an executive order or an act of Congress to be kept classified.¹⁹

¹⁴ COA-DBM Joint Circ. No. 2024-1, Part I (E) (x).

¹⁵ See Department of Public Works and Highways (DPWH), Guidelines on the Procurement, Turn-Over, Inspection, Disposal, and Inventory of Information and Communications Technology (ICT) Resources, Department Order No. 167, series of 2022, § 2 (2.9) (28 July 2022).

¹⁶ See National Privacy Commission (NPC), Implementing Rules and Regulations of the Data Privacy Act of 2012, Republic Act No. 10173, rule I, § 3 (j) (2016).

¹⁷ An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for this purpose a National Privacy Commission, and For Other Purposes [Data Privacy Act of 2012], Republic Act No. 10173 § 3 (g) (2012).

¹⁸ COA-DBM Joint Circ.No. 2024-1, Part I (E) (ee).

¹⁹ Data Privacy Act of 2012, § 3 (h).

- T. **Sensitive properties** refer to properties potentially dangerous to public safety or security if stolen, lost, or misplaced, or that shall be subject to exceptional physical security, protection, control, and accountability. Examples include weapons, ammunition, explosives, controlled substances, radioactive materials, hazardous materials or wastes, or precious metals.²⁰
- U. **Unserviceable ICT Properties** refer to ICT properties that can no longer be repaired or reconditioned, beyond economic repair, have no more utilization potential, or are repairable but no longer needed.²¹
- V. **Vital Records** refers to records containing information essential for: emergency operation during a disaster; the resumption and/or continuation of operations; the reestablishment of the legal, financial and/or functional status of the organization; and the determination of the rights and obligations of individuals and corporate bodies with respect to the organization.²² Examples include, but not limited to, employees' personal documents that may contain personal identifiable information such as Personal Data Sheets, medical records and other documents that are similar in nature.

Section 4. Disposal Committee. —

- A. Pursuant to EO No. 309, s. 1996, heads of Government Offices shall constitute a Disposal Committee in their respective organizations, which shall be composed of the following:
 - 1. An official with a rank or function not lower than an Assistant Secretary for a Department, Director III for an agency lower than a Department, Department Manager for a GOCC, Department Head I for an LGU, or their equivalent for SUC;
 - 2. Head of the department's/agency's administrative service/division, or head of the GOCC's/SUC's/LGU's equivalent organizational unit; and
 - 3. Head of the Property Unit.
- B. As may be needed, additional personnel may be designated as members of the Disposal Committee, provided that the core composition as stated above shall be retained.
- C. Specifically, the Disposal Committee shall undertake the following responsibilities:²³
 - 1. Inspect, appraise, and undertake valuation activities as a group or individually;
 - 2. Set the final appraised value of the ICT properties for disposal;
 - 3. Determine the appropriate mode of disposal and recommend the same to the applicable authorities as enumerated above for approval;
 - 4. Undertake the disposal proceedings for the ICT properties, e.g., conduct of public auction, condemnation/destruction of properties, among others, on an "as is, where is" basis;
 - 5. Ensure that ICT properties for disposal do not include materials not intended for disposal;

²⁰ COA-DBM Joint Circ. No. 2024-1, Part I (E) (ff).

²¹ *Id.* Part I (E) (gg).

²² NAP, Rules and Regulations Governing the Management of Public Records and Archives Administration, General Circular No. 1, series of 2009 [NAP Gen. Circ. No. 1], Art. II, Rule 2 (20 January 2009).

²³ See COA-DBM Joint Circ. No. 2024-1, Part II (A) (2.2).

6. Ensure the extraction, proper storage, and security of confidential data stored in ICT equipment before disposal; and
7. Perform other related functions that may be assigned by the head of the Government Office concerned.

Section 5. Inventory and Assessment. —

- A. The Property Unit shall identify government ICT properties that are no longer in use or have reached their estimated useful life as prescribed in Annex A of this Circular. After which, the Property Unit shall submit an annual report of its findings to the Disposal Committee.
- B. All identified ICT properties will be inspected and assessed by the ICT Unit, and it will determine if the ICT property is deemed unserviceable, unusable, or obsolete before disposal. The ICT property will be assessed and evaluated based on its physical condition and functionality.
- C. The assessment and evaluation shall comply with the reference control objectives and controls under A.8.3.2 on Disposal of media and A.11.2.7 on Secure disposal or reuse of equipment as indicated in PNS ISO/IEC 27001 on Information security, cybersecurity and privacy protection — Information security management systems - Requirements²⁴ and controls and guidance stipulated under 7.10 on Media Storage - Secure reuse or disposal²⁵ and 7.14 on Secure disposal or reuse of equipment²⁶ as indicated in PNS ISO/IEC 27002 on Information security, cybersecurity and privacy protection — Information security management systems - Requirements.
- D. The ICT unit will provide a copy of their evaluation to the End-user and Property Unit.

Section 6. Data Sanitization. — All organization-related and owned information and data shall be removed from the ICT property before disposal. When transferring ICT properties, any information on the device shall be protected and removed according to the level of sensitivity and classification of the data as highly-sensitive government data, above-sensitive government data, sensitive government data, and nonsensitive government data as prescribed in DICT Department Circular No. 10, s. 2020, and its amendments, as applicable. ²⁷

A. Roles and Responsibilities

1. End-user

- a. The end-user and his or her immediate supervisor shall determine the level of classification of the data stored on the device.

²⁴ See Philippine National Standards (PNS) ISO/IEC 27001 Information security, cybersecurity and privacy protection — Information security management systems - Requirements, Annex A, available at <https://standardsph.dti.gov.ph>

²⁵ See Philippine National Standards PNS ISO/IEC 27002:2022 on Information security, cybersecurity, and privacy protection - Information security controls [PNS ISO/IEC 27002], clause 7.10 at 70, available at <https://standardsph.dti.gov.ph>

²⁶ *Id.* clause 7.14 at 80-81.

²⁷ See DICT, Amendments to Department Circular No. 2017-002, Re: Prescribing the Philippine Government's Cloud First Policy, Department Circular No. 10, series 2020 [DICT DC No. 10, s. 2020] (02 June 2020). "Removed and removal" refers to the data sanitization process;

- b. The end-user, noted by their immediate supervisor and the ICT Unit, shall confirm that Vital Records have been backed up and retrieved before data sanitization.
2. ICT Unit
 - a. The ICT unit shall be responsible for the conduct of proper sanitization on the ICT property.
 - b. Prior to the conduct of disposal, the ICT unit shall ensure that all software installed on the government-owned ICT property deemed for disposal has been properly and fully uninstalled.
 - c. Likewise, the ICT unit shall issue a certification signed by the Head of the ICT Unit or the designated authorized representative,²⁸ ensuring the complete extraction, proper storage, and security of data, and ensuring proper turnover of ICT equipment before disposal.
3. Property Unit
 - a. The Property Unit or its equivalent unit or personnel, duly authorized by the Government Office concerned, will be responsible for carrying out physical destruction as deemed appropriate.
4. All Personnel
 - a. All personnel in charge of data sanitization are required to comply with:
 - i. National Archives of the Philippines (NAP) General Circular No. 5, otherwise known as the "Guidelines on the Disposal of Valueless Records in Government Agencies";
 - ii. Executive Order No. 608, s. 2007, entitled, "Establishing a National Security Clearance System for Government Personnel With Access to Classified Matters and for Other Purposes"; and
 - iii. RA No. 10173, otherwise known as the "Data Privacy Act of 2012" and other relevant issuances of the National Privacy Commission.

B. Methods of Data Sanitization

1. ICT properties with non-functioning memory or storage technology will have the memory or storage device removed and will be physically destroyed.
2. In line with Memorandum Circular No. 78, s. 1964,²⁹ the disposal of ICT properties that contain data/information classified as Highly Sensitive Government Data³⁰ and Above-Sensitive Government Data³¹ shall be by physical destruction, ensuring secure and irreversible elimination of such classified materials, with appropriate certification and documentation to be maintained for accountability and compliance with any future regulatory updates or amendments.

²⁸ The Head of the ICT unit oversees and is accountable to the overall adherence of the ICT unit to established protocols. By signing the certification, the Head of the ICT unit certifies that the ICT property has undergone all data security and sanitization protocols and is cleared for disposal.

²⁹ See Office of the President, Promulgating Rules Governing Security of Classified Matter in Government Offices, Memorandum Circular No. 78, series of 1964 [MC No. 78, s. 1964], (14 August 1964).

³⁰ DICT Dept. Circ. No. 10, s. 2020, § 1.3 defines "Highly Sensitive Government Data" as follows: *Highly Sensitive Government Data shall include official matter classified as "Top Secret," "Secret," and other similar data.*

³¹ *Id.* defines "Above-Sensitive Government Data" as follows: *Above-Sensitive Government Data shall include official matter classified as "Confidential" and other similar data.*

Further, the ICT unit may refer to PNS ISO/IEC 27040 Information technology — Security techniques — Storage security on the detail on methods for sanitizing storage media.³² Multiple methods may be used in sanitization. In general, they take the form of any of the following:

- a. Clear - Involves the use of software or hardware to overwrite the target data with non-sensitive data.
 - b. Purge – Involves the use of physical or logical techniques that make recovery infeasible, using state-of-the-art laboratory techniques, while preserving the storage in a potentially reusable state.
 - c. Destruct - Involves the use of physical techniques (e.g., disintegrate, incinerate, melt, pulverize, and shred) to destroy the storage. This sanitization method is not applicable to logical storage.
- C. All ICT properties that have been sanitized or are pending disposal must be securely handled and endorsed to the Property Unit by the ICT unit to prevent any unauthorized access, damage, or theft. Procedures should be in place to ensure that only authorized personnel have access to these properties during the transfer.

Section 7. Documentation and Reporting.—The Property Unit, in collaboration with the ICT Unit, shall establish a record of sanitized ICT properties for disposal. The record should contain at least the following data: device model/make serial number, type of data sanitized, schedule, method used, the final disposition of the data, and responsible personnel. The head of the Property Unit or a duly assigned personnel shall be the official custodian of the records.

- A. Chain of custody procedures - To address the risk of data retrieval from sanitized and non-functioning devices, the concerned unit shall also establish clear chain-of-custody procedures to track devices from the moment they are decommissioned until they are properly disposed of and develop an internal reporting mechanism³³ for identifying any breaches or lapses in disposal practices.
- B. Audit trail - The Property Unit and ICT Unit must ensure that all actions related to the disposal of ICT properties are logged and auditable. This includes documenting the chain of custody, actions taken during data sanitization, and final disposal actions to ensure accountability and traceability.³⁴

³² See Philippine National Standards, ISO/IEC 27040 on Information technology — Security techniques — Storage security, available at <https://standardsph.dti.gov.ph/portal/catalog/ISOIEC27040>.

³³ Internal mechanisms may include establishing reporting channels, ensuring proper documentations during the whole process. Certification (Annex C) will form part of the reporting mechanism.

³⁴ Audit logs' period of retention will follow the prescribed rules issued by the National Archive of the Philippines Gen. Circular 1.

Section 8. Modes of Disposal. —

- A. The Property Unit shall notify the Disposal Committee of all ICT properties for disposal and its recommended appropriate mode of disposal as identified under Part II(H) - Modes of Disposal of the 2024 Revised Manual on the Disposal of Government Properties, as determined appropriate and advantageous to the government.³⁵
- B. The Disposal Committee shall be responsible for the speedy process of disposal of ICT properties in accordance with relevant laws and regulations.
- C. As prescribed in Part II(H) of the COA-DBM Joint Circular No. 2024-1,³⁶ ICT properties may be disposed of through any of the following methods as appropriate and deemed most advantageous to the government:
 - 1. Condemnation/Destruction of Properties;
 - 2. Transfer of ICT Properties to Another Government Agency;
 - 3. Donation;
 - 4. Return to the Supplier/Vendor;
 - 5. Sale to Government Officials/Employees of the Agency;
 - 6. Public Auction;
 - 7. Negotiated Sale;
 - 8. Sale of Junk or Scrap and/or Recycling; or
 - 9. Direct Negotiation.
- D. ICT properties that are disposed of using the aforementioned modes are still subject to Section 6(B) of this Circular.

Section 9. Compliance with Regulations.—Agencies are required to engage only with certified e-waste recyclers accredited by the DENR³⁷ or relevant authorities, ensuring that all disposal practices meet environmental standards and contribute to sustainable waste management.

- A. Disposal Procedure for Hazardous E-waste:
 - 1. Conduct of inventory of all ICT properties scheduled for disposal, documenting their condition and any sensitive data.
 - 2. Conduct data sanitization.
 - 3. For the government agency to register as a waste generator of hazardous waste with the EMB to comply with regulatory requirements.³⁸

³⁵ See COA-DBM Joint Circ. No. 2024-1, Part II (H).

³⁶ *Id.* Part II (H).

³⁷ Under DENR AO No. 2013-22, all generators, transporters, and treatment, storage, and disposal (TSD) facilities handling hazardous waste, including Waste Electrical and Electronic Equipment (WEEE), must register with the Environmental Management Bureau (EMB). This registration ensures comprehensive documentation of waste movements, which includes obtaining a Permit to Transport (PTT) and a manifest or chain-of-custody document for each transaction. Once the waste has been treated, TSD facilities are required to issue a certificate of treatment, thereby adhering to the cradle-to-grave management principle that tracks hazardous waste from generation through transport, recycling, treatment, and final disposal.

³⁸ See DENR AO No. 2013-22, Part 3.3 (Requirements For Waste Generators), p. 17.

4. Identify and select a DENR-accredited treatment, storage and disposal (TSD) facility for the disposal of e-waste.
 5. Ensure that the TSD facility treats the e-waste according to environmental standards and obtains a certificate of treatment upon completion.
 6. Arrange for secure transportation of the ICT properties to the selected TSD facility, ensuring compliance with PTT and manifest requirements.
 7. Maintain records of all disposed ICT equipment, including serial numbers, methods of data sanitization used, and certificates received from the TSD facility.
- B. The disposal of biohazard materials, such as healthcare, electronic, and chemical waste, shall follow existing laws, rules and regulations, and standards on waste management and disposal, and subject to the issuance of the agencies concerned, which may include segregation, decontamination, and recycling.³⁹
- C. All Disposal partners, if any, such as third-party contractors handling government ICT property disposal, must be compliant with relevant regulations on e-waste management⁴⁰ and data protection. Engagement agreements with these partners shall include clauses in the Terms of Reference that obligate the partners to comply with the guidelines set forth in this Circular.
- D. COA, as the overarching agency in charge of disposal in the Government, will have the task of monitoring agency compliance. The respective heads of agencies are responsible for ensuring that their agencies are compliant with existing rules and regulations. The agencies shall submit a report on the ICT property disposal activities of the agency.

Section 10. Training and Awareness.—All relevant personnel involved in the ICT property management, disposal process, and data sanitization must undergo regular training and awareness programs as provided by their respective Human Resource Development Division or its equivalent office within the Government Office, in coordination with DENR-EMB or relevant training institutions, to ensure compliance with this Circular, understanding of applicable laws, and awareness of the latest threats and best practices in secure data disposal.⁴¹

Section 11. Review.—This Circular shall be reviewed every three (3) years or earlier as needed to ensure that the guidelines prescribed remain relevant to address emerging issues and concerns. Relevant offices shall incorporate a cybersecurity review within the regular review of the policy to account for emerging cybersecurity risks in ICT asset disposal to address potential threats and improve sanitization techniques.

Section 12. Separability.—If any provision of this Circular is declared unconstitutional or invalid, the other provisions not affected thereby shall remain in full force and subsisting.

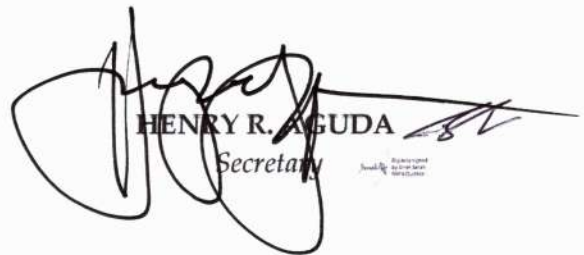
³⁹ COA-DBM Joint Circ. No. 2024-1, Part II (H).

⁴⁰ See DENR AO No. 2013-22.

⁴¹ Initial training will be conducted after the approval and signing of the policy and after onboarding of newly hired staff. Subsequent training will be on a regular basis (annual retraining) to ensure that disposal practices are in line with applicable laws, best practices and standards. Training will be provided or organized by the Human Resource Development Division or its equivalent within the government office, in coordination with DENR-EMB or relevant training institutions.

Section 13. Repealing Clause.—All other orders, directives, and related issuances that may be inconsistent or contrary herewith are hereby amended, repealed, or modified accordingly.

Section 14. Effectivity.—This Circular shall take effect fifteen (15) days after its publication in the Official Gazette or any newspaper of general circulation and upon filing with the Office of the National Administrative Register, University of the Philippines Law Center.



HENRY R. AGUDA
Secretary

Approved
and
Signed
for
the
President

Copy furnished:
All concerned.

**GUIDELINES ON THE DISPOSAL OF GOVERNMENT INFORMATION AND COMMUNICATIONS TECHNOLOGY (ICT)
PROPERTIES**



ANNEX A
ESTIMATED USEFUL LIFE OF ICT EQUIPMENT⁴²

Government ICT Property	Estimated Useful Life
Office Equipment, Furniture and Fixtures	
I. IT Equipment - Hardware A. ICT Office Equipment; B. ICT Office Supplies	5 years
II. Machineries and Equipment	
III. Communication Equipment / ICT Infrastructure, Machineries, and Equipment	10 years

ANNEX A: ESTIMATED USEFUL LIFE OF ICT EQUIPMENT

Dated: NOV 04 2025

⁴² See COA, Revised Estimated Useful Life in Computing Depreciation for Government Property, Plant and Equipment, Circular No. 2003-007 [COA Circ. No. 2003-007] (11 December 2003).



ANNEX B MODES OF DISPOSAL⁴³

1. Condemnation/Destruction of Properties

- a. Valueless, unstable, or hazardous ICT properties may be condemned and destroyed by pounding, breaking, shredding, throwing, or any other method by which ICT properties are disposed of beyond economic recovery.
- b. The disposal of biohazard materials, such as electronic waste, shall follow existing laws, rules, and regulations, and standards on waste management and disposal, which may include segregation, decontamination, and recycling.
- c. The mandatory removal of usable parts prior to the condemnation/destruction of ICT properties for disposal must be ensured by the Disposal Committee. The serviceable components or parts of ICT properties that are transferred, as well as the recipient ICT properties, shall be properly recorded, consistent with the guidelines on recording/inventory of properties.
- d. The condemnation/destruction of ICT properties shall be made in the presence of a representative/s of the Disposal Committee. A representative of the Commission on Audit shall also be present as an observer. A corresponding Waste Materials Report (WMR) or its equivalent shall be prepared by the office concerned to document such condemnation/destruction of ICT properties.

2. Transfer of ICT Properties to Another Government Agency

- a. Upon the initiative of the owning agency or submission of the request to the owning agency, the ICT properties recommended for disposal may be transferred to another government agency. Said transfer shall be done either with or without cost.
- b. Cost, in this case, refers to payment based on the appraised value of the ICT properties. In effecting the transfer of the ICT properties, the Property Transfer Report (PTR) or its equivalent document shall be prepared by the owning agency and transmitted together with the ICT properties to the recipient or requesting agency.

3. Donation

- a. ICT Properties recommended for disposal may be donated to foreign governments, and local and foreign non-government charitable, scientific, educational, or cultural institutions/associations in exceptional and meritorious cases.
- b. The merit of the donation to the abovementioned foreign government and institutions/associations shall be evaluated and approved by the Department of Foreign Affairs (DFA) and DBM upon the submission by the agency of the following documents:
 - i. Justification from the head of the agency;

⁴³ The modes of disposal enumerated in this Circular are lifted from the COA-DBM Joint Circular No. 2024-1 or the Revised Manual on the Disposal of Government Properties.

- ii. Agency Disposal Committee Resolution recommending the disposal of the ICT properties;
 - iii. Proof of the composition of the Disposal Committee;
 - iv. Duly accomplished Inventory and Inspection Report of Unserviceable Property (IIRUP); and
 - v. Certified copy of pertinent procurement documents or other documents as proof of acquisition, as applicable.
- c. In the case of donations/donation to foreign governments or institutions/associations, the DBM shall submit its approval to the donor-agency, which shall then refer the same to the DFA before proceeding with the donation.
 - d. In the case of donations/donation to local institutions/associations, the DBM shall inform the donor-agency of its approval to proceed with the donation

4. Return to the Supplier/Vendor

- a. The agency may return the ICT property upon reaching the end of its useful life, as determined by the Disposal Committee. The supplier/manufacturer shall pay the procuring entity the residual value of the ICT property, which shall be equivalent to at least 5% of its appraised value.
- b. The agencies may determine the ICT properties that may be returned to the supplier/vendor for disposal.
- c. Said list of items is not exclusive and may be updated/modified by relative issuances. The Bid Documents, Purchase Order/Contract, or Terms of Reference shall include a provision on the matter.

5. Sale to Government Officials/Employees of the Agency

- a. When an ICT property has reached the end of its useful life and is already for disposal, said ICT property may be sold to the government official/employee to whom it is issued. The said government official/employee has the right of first refusal, and only in case that he/she refuses or fails to buy the ICT property could the same be sold to other employees. Such sales shall be fully documented as a basis for recording. The selling price shall be based on the appraised value of the ICT properties determined through the formula provided in item G of Part II of the COA-DBM Joint Circular No. 2024-1.⁴⁴ ICT properties that may be sold to employees may include cellular phones, laptop/desktop computers, and other government-issued ICT properties/items.
- b. Government officials/employees who are retiring may be allowed to buy ICT properties issued to them even if they have not reached the end of their useful life; provided that they were issued to the employee at least two and a half (2.5) years or 30 months prior to his/her retirement. Provided, further, that the ICT properties for disposal have already reached half of their useful life based on the estimated useful life of Property, Plant, and Equipment (PPE) in the Government Accounting Manual (GAM) or the specific estimated useful life for the said ICT properties.

⁴⁴ COA-DBM Joint Circ. No. 2024-1, p. 20-22.

- c. In case the ICT properties to be disposed of are issued to and/or to be purchased by a member/head of the Disposal Committee or by the head of the office/agency, the appraisal value of the item shall be verified by the COA Audit Team.
- d. In the case of ICT properties which are for the common use of the employees, e.g., motor vehicles that are intended for the transport of personnel and equipment, the sale of the same would automatically be through an auction within the agency.
- e. Moreover, as applicable, the cost of documentation, i.e., cost of registration and transfer, shall be for the account of the winning bidder or employees who have purchased the properties described in items 1 and 2 above.
- f. In case there is no winning bidder on the first attempt, the process would be considered a failed auction and the agency concerned may proceed to the conduct of a public auction, subject to the guidelines prescribed herein.
- g. Sale may be made to government officials/employees under any of the following conditions:
 - i. Where the ICT assets for disposal are a small number of low-value items which are unlikely to attract public interest;
 - ii. Where the personal use of assets for disposal would directly improve the performance of the employee in the execution of his/her duties;
 - iii. In remote locations, where any other mode of disposal would be difficult; or
 - iv. In the case of retiring officials/employees, as per Section (9)(C)(5)(b) above.
- h. The head of the agency, upon recommendation of the Disposal Committee, shall issue the specific guidelines on the sale of ICT properties to government officials/employees consistent with the general guidelines/principles provided herein.

6. Public Auction

- a. If the primary mode of disposal is through sale, the default shall be through sale by public auction, except for those ICT properties determined as for sale to officials/employees of the government agency, wherein sale to the government official/employee to whom the ICT properties were issued will apply. The ICT properties shall be sold on an "as-is-where-is" basis.
- b. Public auction may be done through either of the following:
 - i. Sealed Public Bidding - characterized by the submission of sealed bids by prospective buyers, where the time, date, and place of opening of bids are indicated in the Invitation to Auction; the evaluation of auction tenders by the Disposal Committee; and the awarding to the highest complying bidder.
 - ii. Viva Voce - properties for disposal that are of insignificant value or of such nature that require immediate disposal shall be sold through public auction by viva voce to be conducted by the Disposal Committee. This likewise applies to the disposal of waste materials and/or spare parts of insignificant value.

- c. In case of two (2) failed public auctions, the agency may resort to a negotiated sale as a mode of disposal.

7. Negotiated Sale

Negotiated sale is another mode of sale of ICT properties that could be resorted to as a consequence of two (2) failed public auctions. The details for this mode are indicated in Part III of the COA-DBM Joint Circular 2024-1.

8. Sale of Junk or Scrap and/or Recycling

- a. This can be resorted to if the following conditions are met:
 - i. The cost of administration and maintenance of the government ICT properties is more than the salvage value, and
 - ii. The selling price for the junk/scrap is not lower than the 10% salvage value of the ICT properties.
- b. If the junk/scrap does not meet such conditions and is deemed to have little or no commercial value beyond its basic material content and is no longer functional, the same may be delivered to a recycling facility or center, preferably registered with the government and deemed most convenient for the agency. The mandatory removal of usable parts prior to disposal must be ensured by the Disposal Committee. The serviceable components or parts of the ICT properties that are transferred to another property shall be properly recorded, consistent with the guidelines on recording/inventory of ICT properties.

9. Direct Negotiation

- a. The agency may directly offer ICT properties for disposal to a prospective buyer in the following instances:
 - i. The market is limited, and a single buyer who is willing to pay the reserve price has been identified.
 - ii. National security, public interest, legal or human rights issues, or environmental considerations are served by selling to a particular company, group, or individual;
 - iii. A potential buyer is a user of an asset at the time the decision to dispose of the asset is made, and it is reasonable to give that person the first option to buy the asset at a market rate;
 - iv. An asset is located on a potential buyer's premises on a hire or free-use basis, and it is reasonable to give that person the first option to buy the asset at a market rate.

The head of the agency, upon recommendation of the Disposal Committee, shall issue the specific guidelines on the sale of ICT properties through direct negotiation

ANNEX B: MODES OF DISPOSAL



ANNEX C:
CERTIFICATION ENSURING THE COMPLETE EXTRACTION, PROPER STORAGE, AND
SECURITY OF DATA AND ENSURING PROPER TURNOVER OF ICT EQUIPMENT
BEFORE DISPOSAL

CERTIFICATE OF SANITIZATION	
INSTRUCTIONS	
1. This form shall only be completed by personnel from the ICT Unit authorized to perform data sanitization. 2. Media information shall be filled out based on its property inventory tag 3. Data Classification should be provided by the employee accountable for the ICT property and his or her immediate supervisor. level of sensitivity and classification of the data as highly-sensitive government data, above-sensitive government data, sensitive government data, and nonsensitive government data, as prescribed in DICT Department Circular No. 10, s. 2020, and its succeeding amendments, as applicable.⁴⁵ 4. Validation should be provided by the Head of the ICT Unit. 5. This documentation shall be endorsed by the ICT Unit to the Property Unit.	
A. Person Performing Sanitization	
Name:	Position:
Organization:	Contact Information:
B. Media Information	
Property Number:	
Asset Classification:	
Item/Brand/Model:	
Serial Number:	
Acquisition Date:	

⁴⁵ See DICT,, Amendments to Department Circular No. 2017-002, Re: Prescribing the Philippine Government's Cloud First Policy, Department Circular No. 10, series 2020 [DICT DC No. 10, s. 2020] (02 June 2020). "Removed and removal" refers to the data sanitization process;

Location:	
Description:	
Acquisition Date:	
Data Classification: ☐ Highly Sensitive Government Data / Above-Sensitive Government Data ☐ Sensitive Government Data ☐ Non-Sensitive Government Data ☐ Not applicable (non-functioning memory storage)	Data Backed Up: ☐ Yes ☐ No ☐ Not Applicable Backup Location: _____
C. Sanitization Details	
Method: ☐ Clear ☐ Purge ☐ Destruct	
Other Details:	
Tool Used <i>(include version)</i> :	
Notes:	

D. Recommendation	
☐ Internal Re-use	☐ For disposal: Mode of disposal ☐ Condemnation/Destruction of Properties ☐ Transfer of ICT Properties to Another Government Agency ☐ Donation ☐ Return to the Supplier/Vendor ☐ Sale to Government Officials/Employees of the Agency ☐ Public Auction ☐ Negotiated Sale ☐ Sale of Junk or Scrap and/or Recycling ☐ Direct Negotiation
Details:	
E. Attestation	
I attest that the information provided on this certification is accurate to the best of my knowledge	
Signature over printed name:	Date:
F. Validation	
Name:	Position:
Office:	Contact Details:
Signature:	Date:

ANNEX C: CERTIFICATION ENSURING THE COMPLETE EXTRACTION, PROPER STORAGE, AND SECURITY OF DATA AND ENSURING PROPER TURNOVER OF ICT EQUIPMENT BEFORE DISPOSAL

Dated NOV 04 2025